

BC710623 BC710623

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-10

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Case Number: BC710623 Hearing Date: August 10, 2026 Dept: 516

JUDGE JAMES I. MONTGOMERY

DEPARTMENT 516

Hearing Date: August 10, 2026

Case Name: Himmeslbach-Weinstein v. Cobird, Inc., et al.

Case No.: BC710623

Matter: Motion to Seal

Moving Party: Judgment Debtor Christopher Hammond

Responding Party: Assignee of Record G.R. Isidro

Tentative Ruling: Judgment Debtor Christopher Hammond's motion to seal is denied.

On February 4, 2019, the Court entered a default judgment against Defendant Cobird, Inc., a California foreign corporation, and Christopher Hammond ("Judgment Debtor") in the amount of \$95,324.84.

Judgment Debtor moves for a Court Order sealing the notice of opposition to Claim Exemption filed by assignee of record G.R. Isidro ("Assignee") dated May 2, 2026, and May 8, 2026. Assignee opposes.

Legal Standard

"A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, Rule 2.551, subd. (b)(1).)

The court must make express findings to support sealing under California Rules of Court, Rule 2.550. Specifically, California Rules of Court, Rule 2.550, subdivision (d), provides:

The court may order that a record be filed under seal only if it expressly finds that:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(b).)

The party seeking to seal a document bears the burden of proof. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 894 (Doe).) Specifically, "[a] party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, rule 2.551(b)(1).)

Analysis

Judgment Debtor moves for a Court Order sealing the notice of opposition to Claim Exemption filed by assignee of record G.R. Isidro ("Assignee") dated May 2, 2026, and May 8, 2026, that lists his Social Security number instead of only the last four digits.

As an initial matter, Judgment Debtor has not provided any legal authority that the Court has the authority to retroactively seal Exhibit A. The evidence before the Court demonstrates that the Exhibits were filed on May 2, 2025, and May 8, 2026.

Once a document has become a part of the "public domain," it can no longer "recaptured and sealed" like a physical object. (*Hurvitz v. Hoefflin* (2000) 84 Cal.App.4th 1232, 1245-47 ["neither the state nor the federal Constitution permits the court to lock the barn door after the horse is gone"].)

To date of this hearing, it has been 100 days since the May 2, 2026, document became part of the public record. Throughout his motion, Judgment Debtor contends that he has acted diligently to seek relief; however, the lapse in time to seek relief shows the contrary.

Judgment Debtor has not presented the Court with any legal authority that it can retroactively apply after the document has been disseminated for 100 days. Nor does the declaration filed with the motion support the elements under California Rules

of Court Rule, rule 2.550(d). (Hammond Decl., ¶¶ 1-13.)

Thus, the Court denies Judgment Debtor's motion to seal.

Conclusion

Judgment Debtor Christopher Hammond's motion to seal is denied.